Harris County District Court

Cause No. 2023-CV-0047

Jessica Olson, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Plaintiff's Original Petition

Filed:	September 25, 2023
Plaintiff's counsel:	Lisa Solis, Valentine & Joyce Injury Lawyers

Parties

Plaintiff Jessica Olson is an individual residing in Texas who was the driver of a vehicle ivnolved in the collision described below. Defendant is an automobile insurance company authorized to transact business in the State of Texas, which issued a personal auto policy covering the at-fault driver and which is subject to suit under that policy and applicable Texas law.

Facts

On March 24, 2023, Plaintiff was lawfully operating his vehicle on a public roadway in Baytown, Texas, when the vehicle driven by the at-fault motorist crossed into Plaintiff's lane and struck Plaintiff's vehicle head-on. The impact occurred at low speed, but it was sufficient to force Plaintiff's head and neck backward and then forward violently against the seatback and headrest. Plaintiff immediately reported neck pain and stiffness at the scene and sought medical evaluatoin the same day, where he was diagnosed with cervical whiplash. Following the collision, Plaintiff submitted a claim under the at-fault motorist's liability coverage, and Defendant has failed to offer a fair settlement.

Negligence

The at-fault motorist owed a duty to drive with reasonable care, keep a proper lookout, and remain within his lane of traffic. The motorist breached that duty by failing to do so, which directly caused the collision. Defendant, as the liability insurer, is obligated under its policy to pay damages the insured becomes legally obligated to pay, and Defendant has unreasonably delayed and undervalued Plaintiff's claim in violation of the Texas Insurance Code and the Unfair Claim Settlement Practices provisions applicable to Defendant's handling of this claim.

Damages

As a direct result of the collision, Plaintiff has suffered physical pain, impairment, mdeical expenses, lost wages, and mental anguish. Plaintiff's neck and upper back symptoms continue to limit his daily activities and require ongoing treatment. Plaintiff seeks actual damages in an amount to be determined by the jury, together with statutory interest, costs, and attorney's fees as permitted by law. Plaintiff demands payment in the amount of $151,000.00.